

6. 9:00 AM CASE NUMBER: C25-00284
CASE NAME: MAKHLOUF DOUCHER VS. R.G. HILL & COMPANY
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFFS' COMPLAINT**
FILED BY: R.G. HILL & COMPANY
TENTATIVE RULING:

Defendant R.G. Hill & Company's unopposed Motion to Strike is Granted without Leave to Amend. The following language shall be stricken from the Complaint:

- Plaintiffs' Complaint at p. 17, paragraph 83, which states "After plaintiffs have had the opportunity to inspect defendants' net worth, plaintiffs will seek leave to amend this Complaint to ask that defendants, and each of them, pay plaintiffs punitive and exemplary damages in an amount sufficient to ensure that defendants, and each of them, will be deterred from similar conduct and as an example to deter others from disregarding the rights of similar plaintiffs."
- Plaintiffs' Complaint at p. 18, section E, which states "That the Court adjudge and decree that, after plaintiffs have had the opportunity to inspect defendants' net worth, defendants, and each of them, pay plaintiffs punitive and exemplary damages in an amount so as to ensure that defendants will be deterred from similar conduct and as an example to deter others from disregarding the rights of similar plaintiffs;"
- Plaintiffs' Complaint at p. 17, paragraph 80, which states "the attorneys' fees and other litigation expenses plaintiffs have incurred in prosecuting this action;" and
- Plaintiffs' Complaint at p. 19, section H, which states "That the Court adjudge and decree that defendants, and each of them, pay plaintiffs' attorneys' fees and costs of suit herein;"

7. 9:00 AM CASE NUMBER: C25-00284
CASE NAME: MAKHLOUF DOUCHER VS. R.G. HILL & COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: R.G. HILL & COMPANY
TENTATIVE RULING:

The unopposed demurrer of Defendant R.G. Hill & Company is sustained as to the Second, Third, Fourth, Sixth, Seventh, Tenth, Eleventh and Twelfth Causes of Action in the Plaintiff's Complaint without leave to amend.

8. 9:00 AM CASE NUMBER: C25-01036
CASE NAME: DAN CARRILLO VS. CHRISTOPHER BEGG
***HEARING ON MOTION IN RE: CONTEST APPLICATION FOR GOOD FAITH SETTLEMENT**
FILED BY: BEGG, CHRISTOPHER
TENTATIVE RULING:

Before the Court is a motion by defendant and cross-complainant CBC General Contractors Inc. to contest an application for good faith settlement determination and the application by plaintiffs Dan

Carillo and Emily Elliott, and cross-defendant Blaine Mervin Munsch dba Willow Creek Construction ("Applicants") for a good faith settlement determination. For the reasons set forth, the hearing is continued to **9:00 a.m. on February 13, 2026** for supplemental briefing as set forth below.

Background

Plaintiffs Dan Carillo and Emily Elliott allege they entered into a written contract with defendant and cross-defendant CBC General Contractors Inc. to perform a remodel of their residence in Lafayette (the "Project"). They allege three causes of action, including breach of contract based on CBC's failure to complete the construction by the contractual deadline, negligence in the performance of the construction, and alter ego against CBC's principals, defendants Christopher Begg and Karen Begg.

CBC filed a cross-complaint against the Plaintiffs and three subcontractors, Blaine Mervin Munsch dba Willow Creek Construction ("Willow Creek"), Michael Charles Soberanes dba Micor Electric ("Micor"), and Bay Valley Sheet Metal, Inc. CBC's cross-complaint alleged a claim against Plaintiffs for breach of the construction contract, but CBC subsequently dismissed Carillo and Elliott as cross-defendants. CBC's cross-complaint also asserts causes of action against the subcontractors Willow Creek, Micor, and Bay Valley for express contractual indemnity, and equitable indemnity, apportionment of fault and contribution and declaratory relief.

Procedural Dispute over Reply and "Sur Opposition"

Prior to commencement of this action, in February 2025, Plaintiffs entered into a settlement with Willow Creek pursuant to which Willow Creek agreed to pay Plaintiffs \$85,000, among other terms. In August 2025, Applicants filed an application for good faith settlement determination under Code of Civil Procedure section 877.6 (the "Application"). On September 8, 2025, CBC filed a motion to contest the Application under Code of Civil Procedure section 877.6(a)(2), which Applicants have opposed.

On December 30, 2025, CBC filed reply papers which included a declaration by defendant Begg and a declaration by counsel for CBC, Ian Buchanan. The Buchanan Reply Declaration attached copies of the form interrogatories served by CBC on Plaintiffs in July 2025 and a copy of Plaintiffs' responses to the form interrogatories dated September 18, 2025. (Buchanan Reply Decl. Exhs. A and B.) The Begg Reply Declaration addresses information regarding damages asserted in Plaintiffs' discovery responses.

Applicants filed a "sur opposition" on December 30, 2025. The Code of Civil Procedure does not recognize a "sur opposition" as a pleading that may be filed in connection with a motion. (*See, e.g.*, Code Civ. Proc. § 1005(b).) The content of the "sur opposition" is an objection to the Court considering the evidence submitted with CBC's reply.

Plaintiffs reached their settlement with Willow Creek in February 2025, approximately 45 days before they filed their complaint initiating this action. CBC filed its cross-complaint on May 27, 2025, and on July 30, 2025, CBC served written discovery on Plaintiffs by email. (Ginn Decl. ¶ 5.) With the written discovery pending, approximately two weeks later, on August 13, 2025, Applicants served their Application on CBC's counsel by certified mail (Ginn Decl. ¶ 6), starting the deadline for CBC to file a motion contesting the Application under Civil Code section 877.6(a)(2). Applicants also asked CBC for an extension of time for Plaintiffs to respond to CBC's discovery. The requested extension made Plaintiffs' response due after CBC's filing deadline to contest the Application.

CBC's moving papers raise Plaintiffs' failure to provide their discovery responses before CBC's motion was due and filed, and they explain the relevance of the discovery responses to the good faith determination and allocation of the settlement proceeds as they pertain to Plaintiffs' damage claims in light of the claims alleged in the Complaint and the settlement. (CBC MPA ISO Mtn. p. 3, ll. 21-25; Ginn Decl. ¶ 8.) (See *also* CBC MPA ISO Mtn. pp. 2-3, p. 5, ll. 15-22, p. 6, ll. 1-16, p. 6, l. 25 - p. 7, l. 8; Compl. ¶ 12, p. 3, ll. 24-27 and ¶ 16, l. 4, ll. 18-21 ["errors, defects and nonconforming work existed related to: exterior/interior foundation, subfloor support, attic/roof structural . . . misaligned doors . . ."].)

The evidence filed with the CBC reply was not available when CBC filed the motion contesting the Application, based on the filing deadline under Code of Civil Procedure section 877.6(a)(2) and the extended discovery response date requested by Plaintiffs. Though the general rule is that new evidence should not be presented for the first time in a reply, such evidence can be considered when good cause is shown and when the other party is given an opportunity to address the new evidence. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.)

The Court finds good cause to consider the reply evidence under the circumstances, including the fact CBC raised the significance of the discovery responses in its moving papers and that the evidence was not available to CBC when it filed its motion in part because Plaintiffs asked for a delay in providing the responses. The Court, however, will give Applicants an opportunity to address the reply evidence.

Supplemental Briefing

Applicants may file a supplemental opposition addressed to the evidence filed with CBC's reply. Applicants' supplemental opposition shall be filed and served by January 30, 2026. CBC may file a supplemental reply to Applicants' supplemental opposition by February 6, 2026.

The parties' supplemental briefing should also address and clarify Applicants' position that the Willow Creek settlement resolves construction defects related to "framing" although the Willow Creek subcontract encompassed both framing and foundation work, and the implications for the good faith settlement determination. (See Appl. p. 3, ¶ 3, ll. 1-4, and p. 5, ll. 6-8; Opp. to Mtn. p. 3, l. 1-2 citing Kelly Decl. Exh. 2; Opp. to Mtn. p. 3, ll. 11-14, p. 5, ll. 1-3, ll. 5-6, and ll. 26-27, and p. 6, ll. 2-4.).

The continued hearing on the CBC motion and the Application shall be set for February 13, 2026.

9. 9:00 AM CASE NUMBER: C25-01756
CASE NAME: JASMINE MORRIS-HUGHES VS. ALAMEDA CONTRA COSTA TRANSIT DISTRICT
HEARING ON PETITION IN RE: LEAVE TO PRESENT LATE GOVERNMENTAL CLAIMS
FILED BY: MORRIS-HUGHES, JASMINE
TENTATIVE RULING:

For the reasons stated in the moving papers, Plaintiff's unopposed Petition for Leave to Present Late Governmental Claims is granted. Plaintiff JASMINE MORRIS-HUGHES is granted relief from the provisions of California Government Code § 945. The claim Plaintiff served on TriDelta Transit on July 11, 2025 is deemed to be timely.